

counsel. The currently set motion to compel will go forward on April 28.

Both parties acknowledge that Kharoufeh's sat for a full day of deposition on April 13, 2026 and that no deposition notice is currently pending for any further sessions. Accordingly, there is no pending properly served, unobjected to, deposition notice that Kharoufeh's has failed to appear at. CDCR's request that the Court require Kharoufeh a second day of deposition in the event that the December 2026 mediation is not successful, is currently premature.

With respect to sanctions, “[i]f a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.)

CDCR requests monetary sanctions of \$7,226.95. CDCR contends it incurred fees and costs in expenses of \$2,500, court reporter costs of \$626.95 and videographer costs of \$600 due to plaintiff's failure to appear at, and/or complete her deposition. (Heidi Machen Decl., ¶ 16, Ex. H.) CDCR further provides that incurred an additional \$1,000 in fees and costs for re-noticing and re-preparing for depositions. (*Id.*, at ¶ 17.) CDCR also asserts it incurred an additional \$2,500 "in fees and costs of preparing this motion to compel and will incur additional costs in drafting a response brief and potentially in making an appearance in the event that Plaintiff opposes this motion." (*Id.*, at ¶ 19.)

Under these circumstances, sanctions are warranted given the repeated and numerous last minute deposition cancellations, by plaintiff and her counsel the repeated failure of plaintiff and her counsel to work with defense counsel to reschedule her deposition, and the fact that a full day of deposition testimony was only completed after this Court's intervention

Accordingly, sanctions in the amount of \$7,226.95 are granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 05/15/26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Doe v. Fresno Unified School District, et al.***
Superior Court Case No. 23CECG03206

Hearing Date: May 19, 2026 (Dept. 502)

Motion: By Defendant Samuel Confectioner for Summary Judgment,
or alternatively, for Summary Adjudication

Tentative Ruling:

To deny. (Code Civ. Proc., § 437c.)

Explanation:

Plaintiff John "HJ" Doe (hereinafter "plaintiff") alleges that he was the victim of childhood sexual abuse that occurred when he was approximately 15-17 years old. The alleged perpetrator, defendant Samuel Confectioner, was a substitute teacher employed by defendant Fresno Unified School District ("FUSD") when the abuse allegedly occurred.

The operative pleading is the Second Amended Complaint ("SAC") which alleges four causes of action against FUSD: (1) negligence; (2) negligent supervision; (3) negligent hiring/retention; and (4) public entity liability for failure to perform mandatory duty. All but the third cause of action are asserted against Confectioner (as well as FUSD).

Confectioner seeks summary judgment, or alternatively summary adjudication of unspecified causes of action. The motion primarily appears to be drafted as an attack on the pleading, but without showing that any particular element or elements of the various causes of action are not adequately pled.

Before addressing the merits of the motion, the court will address plaintiff's evidentiary objections. For the most part these are nuisance objections with no basis or merit. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532-533 [parties are encouraged "to raise only meritorious objections to items of evidence that are legitimately in dispute and pertinent to the disposition of the summary judgment motion."].) The court sustains objection no. 2 to the complaint filed in Sacramento Superior Court, as there is no authentication of the document. All other objections are overruled.

In moving for summary judgment, a defendant has burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) Only if the defendant has met that burden, does the burden shift to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense. (*Id.*)

Confectioner first argues that the SAC's propensity-based theory must be excluded under Evidence Code §§ 1101 and 352. Confectioner points to the SAC's

allegations of a 2004 arrest and conviction involving other alleged conduct and quotes Penal Code provisions. (SAC ¶ 18.) The SAC further alleges that defendant had a "pedophilic nature," that there were "reports," "red flags," "grooming," and similar generalized character allegations. (SAC ¶¶ 20, 28-30, 36-38.)

Confectioner appears to be raising an issue of admissibility evidence at trial. Confectioner makes no showing that exclusion of any unspecified propensity-based evidence would negate the essential elements of any cause of action. This argument does not supply a basis for granting summary judgment or summary adjudication. Arguments relating to admissibility of evidence of Confectioner's prior sexual misconduct is more appropriately brought as a motion *in limine* prior to trial. It is not appropriately raised in a summary judgment motion where no such evidence has been submitted by plaintiff.

Confectioner then argues that plaintiff cannot defeat summary judgment with uncorroborated decades-old recollections by plaintiff. Confectioner contends that "[w]here a plaintiff cannot identify admissible evidence establishing essential elements beyond narrative recollection, no triable issue exists." Even if this is an accurate statement of the law, again, no evidence is submitted in this regard. The burden does not shift to plaintiff to show the existence of triable issues until Confectioner first shows that undisputed facts negate an essential element or elements of specific causes of action.

Confectioner contends that the allegations are of conduct that occurred two decades ago, and that Confectioner is prejudiced by lost records and faded memories. But he submits no legal authorities to the effect that summary judgment may be granted on this basis.

Confectioner attacks the fifth cause of action for assault, arguing that plaintiff's alleged imminent apprehension harmful/offensive contact (SAC ¶¶ 121-123) is insufficient where the SAC does not supply corroborating facts or admissible evidence supporting this element beyond plaintiff's recollection. Similarly, Confectioner argues that the sixth cause of action for sexual battery should be adjudicated in his favor because "the SAC pleads no contemporaneous report by Plaintiff, no contemporaneous medical documentation, and no documentary corroboration."

Aside from the failure to show that such contemporaneous evidence must exist to establish the claims set forth in the SAC, a complaint need only plead ultimate facts upon which liability depends. (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Evidence is not to be included in the complaint. (See "A complaint must allege the ultimate facts necessary to the statement of an actionable claim. It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts." (See *Careau & Co. v. Security Pac. Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1390.) Pointing out that the SAC does not contain certain evidence does not negate any element of any cause of action, and does not shift the burden of production to plaintiff.

Confectioner then argues that the negligence-based causes of action focused on FUSD, alleging what FUSD knew or should have known, "do[] not establish triable evidence of each element supported by admissible proof." However, in this section,

